Judicial Practices and Procedures
(last modified October 6, 2026)

Rebecca I. White, Judge
Maggie Molina, Judicial Assistant

Contact Information
Mailing Address: 2000 – 16th Avenue, Vero Beach, FL 32960
Physical Address:2000 – 16th Avenue, Vero Beach, FL 32960
Telephone: 772-226-3280
Fax: (if applicable) n/a
E-mail: Molinam@circuit19.org

Table of Contents

A. Communications with the Judicial Office 1
B. Scheduling Procedures 2
C. Remote Appearance 4
D. Submission of Orders and Judgments 5
E. Courtesy Copies of Case Law and Other Documents 5
F. Emergency and Other Urgent Matters 6
G. Exhibits for Evidentiary Hearing Proceedings 6
H. Pretrial Procedures, Conferences, and Motion Practice 7
I. Setting Case for Trial 7
K. Other Division Procedures 8
L. Information Not Covered 10

A. Communications with the Judicial Office

- **Method of Communication:** "All communications to the judicial office must be submitted by e-mail to Molinam@circuit19.org. The subject line must contain the case number, case name, and relevant matter (e.g., 2024 DR 001234 SC – Doe v. Doe - 2-Hour Hearing Requested.)"

- **Ex parte Communications:** "All communications with the judicial office must comply with Canon 3 of the Code of Judicial Conduct, which prohibits a judge from initiating, permitting, or considering ex parte communications and from considering other communications outside the presence of the parties concerning a pending or impending proceeding,

unless authorized by law. All parties must be copied on any e-mail directed to the judicial office, unless an ex parte communication is authorized by law."] All parties must be copied on any e-mail directed to the judicial office, unless an an ex parte communication is authorized by law.

- **Notice to Persons without lawyers:** The Code of Judicial Conduct governing behavior by judges forbids judges from discussing court cases or legal issues with the parties and their lawyers out of court. The judge is only allowed to consider arguments made in the courtroom and in documents properly filed by parties in the case as authorized by law and the rules of court. The judge cannot respond to letters seeking a judicial ruling in favor of a party. Please do not call or write expecting to communicate with Judge White about any case.

  If you want to make a request for some judicial action, you must file a motion with the Clerk of Court and send a copy to all attorneys and all unrepresented parties in the case. You must contact the judicial assistant for a hearing date. Pursuant to the local rules, the judicial assistant may direct you to send a copy of the motion to her. If the hearing is 1 hour or less, you will need to coordinate a hearing date using our online scheduling calendar.

- **Unsolicited Communications:** Unsolicited communications from non-parties will not be considered by the court. Parties may only contact the judicial office in accordance with these practices and procedures.

- **E-Filing Portal Contact Information:** All attorneys and self-represented litigants must provide an e-mail address to receive signed orders electronically, unless excused. Fla. R. Gen. Prac. & Jud. Admin. 2.516. It is the responsibility of attorneys and self-represented litigants to update their contact information using Form 2.603 any time there is a change in the e-mail account registered for electronic service.

- **Response to Inquiries:** The judicial assistant is not authorized to provide legal advice. The judicial assistant will make every effort to timely respond to all communications received.

B. Scheduling Procedures

- **Court Schedule:** The Court's calendar is available online at https://slccjis.stlucieco.gov/attorney_calendar.

- **Scheduling Hearings:**
- Scheduling Hearings of 1 hour or less: Attorneys and pro se parties may schedule hearings using the online scheduling system: https://slccjis.stlucieco.gov/attorney_calendar. You must first register to obtain your user ID and password on the site. Please note that additional motions may not be "piggy-backed" by cross-notice without permission from the Judicial Assistant.

- Scheduling Hearings of more than 1-hour: Please note any hearings that require more than one hour must be requested by email to Molinam@Circuit19.org in writing with an explanation as to why more than one hour is needed and that attempts to resolve the issue have failed. Please contact the Judicial Assistant by email at MolinaM@Circuit19.org with your request for hearing and indicate whether opposing counsel agrees with the estimated time requested for hearing. A copy of the filed motion/petition MUST be attached.

- If you have a pending case that needs to be set for hearing and there is no time available on the online scheduling calendar, please email the Judicial Assistant at MolinaM@Circuit19.org with the details of your request, including a copy of the petition/motion and the total time needed for hearing.

- **Notice of Hearing:** A notice of hearing must be filed and served immediately after reserving hearing time. A notice of hearing involving any remote appearance must list the judicial Zoom credentials. All notices of hearing must contain the ADA notification required by Florida Rule of General Practice and Judicial Administration 2.540.

- **Submission Deadlines:** The court must receive a copy of the motion, notice of hearing, (and a proposed order if UMC hearing) within five (5) days of scheduling the hearing by email at MolinaM@Circuit19.org. All proposed orders must be submitted in WORD format. Failure to timely provide a copy of the notice, motion, (and proposed order if UMC hearing), to the Court will result in the matter being stricken from the docket. If your case is stricken from a docket, it will not be rescheduled on that same date. All motions must be filed with the Clerk before you set the motion for hearing using the online scheduling system or contacting this office for a hearing time.

- **Order of Proceedings:** Matters will be heard in the order they appear on the docket. Hearing time will be strictly enforced by the Court. Any motion that is not concluded by the expiration of the requested hearing time will be suspended and must be rescheduled. Only one reset will be permitted per motion. Accordingly, all counsel are advised to be succinct, organized, and to the point in the presentation of, or objection to, any motion.

- **Continuance Procedure:** Continuances are disfavored and will be granted only upon good cause shown. A request for continuance must be submitted at least five days prior to the scheduled court date. Except for good cause shown, the motion must be signed by the party requesting the continuance, as required by Florida Rule of General Practice and Judicial Administration 2.545(e).

- **Cancelling Hearings:** If you cancel your hearing, you must file a Notice of Cancellation and advise the Judicial Assistant by email no later than noon, the day before the hearing, with a copy to all parties, so that it may be removed from the Court's docket. It is the responsibility of the moving party to remove any hearing from the Court's online scheduling system. Simply filing a Notice of Cancellation does not remove the hearing from the Court's docket. Attorneys who repeatedly abuse the online scheduling system by not removing hearings from the online calendar may be denied the privilege of self-scheduling.

- **Other Scheduling Procedures:** Shelter Petitions/Hearings: Shelter hearings are normally conducted on Mondays through Thursdays at 1:15 p.m., and at 8:45 a.m. on Friday, unless otherwise indicated/notified. If a change in the shelter hearing time/courtroom is necessary, you will be notified by e-mail. All shelter petitions are to be e-mailed directly to Judge White with a copy to her Judicial Assistant, no later than 10:00 a.m. or as soon as possible thereafter, on Monday, through Thursdays, when shelter hearings are typically conducted at 1:15 p.m., and no later than 8:00 a.m. or as soon as possible thereafter, on Fridays, when shelter hearings are typically conducted at 8:45 a.m. .

  Probate / Guardianship / Dependency / Civil Conferral prior to filing motions: Before filing a motion, the movant must confer with the opposing party in a good-faith effort to resolve the issues raised in the motion. At the end of the motion and above the signature block, the movant must include a certificate of conferral in substantially the following form: "I certify that prior to filing this motion, I discussed the relief requested in this motion by [method of communication and date] with the opposing party and [the opposing party (agrees or disagrees) on the resolution of all or part of the motion] OR [the opposing party did not respond (describing with particularity all of the efforts undertaken to accomplish dialogue with the opposing party prior to filing the motion)]."

  Failure to include this certification will result in the motion and/or hearing being stricken from the docket.

C. Remote Appearance

- **Remote Appearance Procedure:** The court maintains a hybrid virtual courtroom, allowing parties to appear either in person or remotely, as provided by Florida Rule of General Practice and Judicial Administration 2.530.

- **Platform Used:** The court uses Zoom for remote appearances. **https://zoom.us/j/3062714322**

- **Platform Meeting ID#:** 306-271-4322. There is no password requirement.

- **Requirements:** All evidentiary hearings will be conducted in person lasting over 30 minutes, unless otherwise permitted by the Court prior to the hearing. A Non-Evidentiary hearing may be noticed as a virtual or in person hearing. The Notice of Hearing MUST indicate the type of appearance (i.e. In Person or Remote).

- **Technology Needs:** To request use of the Mobile Presentation Station please visit: https://www.circuit19.org/mobile-station-request/.

- **Other Remote Appearance Procedures:** All testifying participants must appear by Zoom video; unless they have a Notary Public with them to administer an oath. Each party is responsible for having their witnesses in the Zoom Virtual Waiting Room at the scheduled time, where they will remain until admitted by the Court to give testimony.

Witnesses who do not appear on camera; and are not present with a Notary Public will not be permitted to testify. At the time of the hearing, all participants must be in a quiet place, without interruption from children, pets or other noises or distractions.

D. Submission of Orders and Judgments

- **Format:** All proposed orders must be submitted in Word Format. All proposed orders must be accompanied by a cover letter either (1) certifying that all parties agree to the order or (2) containing a statement identifying any disagreement of the parties as to the proposed order. All proposed orders and motions MUST contain proper address certification—i.e. the FULL address or email address where the motion was served (or order will be served.) "I certify that a copy of the foregoing was emailed to all parties through the e-service portal" is NOT sufficient. Likewise, listing a party on the order "cc:" without listing the address is insufficient. The order will reflect that counsel will be required to mail copies of any orders that require US mail.

- **Submission Method:** All proposed order shall be submitted by email to MolinaM@Circuit19.org. **EXCEPT FOR PROBATE – PLEASE REVIEW THE PROBATE MEMORANDUM TO THE RIGHT OF OUR WEBPAGE UNDER PROCEDURES.**

- **Deadline for Submissions:** If counsel is asked to prepare an order, the order shall be drafted and circulated to opposing counsel or pro se party within two (2) business days of the hearing and must be submitted to the Court in Word format and to all counsel and pro se parties within seven (7) days of the hearing, unless otherwise ordered at the hearing.

- **Other Procedures Relating to Submission of Orders and Judgments:** Agreed Orders: If you have reached an agreement/stipulation, a separate agreed order in WORD must be provided to the Court with language approving the agreement/stipulation. If you have exhibits to include in the agreed order, you must also submit the agreed order in .pdf format and include all necessary attachments. The Court will not execute proposed orders, agreed orders, or stipulations without a written verification or cover letter stating the action requested, that a copy was provided to all counsel of record and pro se parties, and if there is a stipulation or an agreed order, that there are no objections to the entry of the order. Do not state in a cover letter words to the effect: "No objection was received" OR "By copy of this cover letter to opposing counsel, opposing counsel is requested to advise the Court if there is an objection to the proposed order." Instead, advise the Court if there is an objection to the proposed order.

E. Courtesy Copies of Case Law and Other Documents

- **When Required:** Any legal memoranda or briefs for special set hearings, along with copies of significant cited authorities (highlighting the pertinent sections is appreciated by the Court), should be provided to the Court and opposing counsel at least three (3) business days prior the hearing. A list of any witnesses to be called and any responsive memoranda should be provided to the Court and to opposing counsel at least three (3)

business days prior to the hearing. The Court will attempt to review the motion and memorandum, and read the cases cited therein, prior to the hearing so that an immediate ruling may be rendered. Brevity is appreciated and encouraged, and memorandums should be kept to no more than five (5) pages in length. Case law and Memorandums provided to the Court during the hearing may not be considered. The Court, on occasion, may rule on motions without a hearing. Therefore, both counsel filing the motion and opposing parties are encouraged to timely file written argument with the Court.

- **Format:** PDF or a word document is acceptable. The Court is unable to access any external links such as Dropbox or any other File Sharing links.

- **Submission Method:** All submissions should be emailed to MolinaM@Circuit19.org.

- **Deadline for Submissions:** Courtesy copies must be emailed to the court no later than three days prior to any evidentiary proceeding.

- **Other Procedures Relating to Submission of Orders and Judgments:** This is a paperless office. Documents shall be submitted to this office by email and should be attached as a document with a name that is easily identifiable and searchable. As an example: Jones v. Jones, 21CA234 O-Set Hrg. Motions must be submitted in .pdf format. All proposed orders must be submitted in WORD format. Please submit all documents attached to one (1) email to the Judicial Assistant at MolinaM@Circuit19.org. The email address for submitting probate documents is: ProbateIRC@Circuit19.org.

F. Emergency and Other Urgent Matters

- **Requirements:** If a party believes there is a factual basis for setting an emergency hearing, a detailed motion setting forth the following must be filed: (1) the issues to be resolved, (2) reasons why an emergency hearing is necessary, and (3) the amount of time needed for each party's presentation. The filing party must submit the motion to the Court by email at molinam@circuit19.org. If you are requesting an Emergency Hearing, you must indicate in the subject line "Request for Emergency Hearing."

- **Scheduling:** If the court determines that an emergency exists, a hearing will be scheduled unilaterally by the court. All parties shall make themselves available for the emergency hearing, barring exigent circumstances.

G. Exhibits for Evidentiary Hearing Proceedings

- **Submission Method:** If Parties wish to have their exhibits premarked then the parties are to file an exhibit list with the Clerk prior to hearing. A completed exhibit list and all exhibits must be efiled into the case.

- **Format:** The exhibits must be in pdf format to be filed through the efiling portal.

- **Deadline for Submissions:** This must be done at least three (3) business days (72 hours) prior to the day of special set hearing.

- **Other Procedures Relating to Exhibits for Evidentiary Proceedings:** Any exhibits not efiled before the hearing can still be straight admitted if the evidentiary predicates are laid and the items to be admitted are brought to court.

H. Pretrial Procedures, Conferences, and Motion Practice

- **Case Management Conference/Status Conference:** Any party may request or schedule a case management conference (CMC) or Status Hearing when a case requires. The court strongly encourages the early use of CMC in more complex cases, multiple-party litigation, or any case that might benefit from court intervention. CMCs are mandatory for attorneys and self-represented litigants in civil cases, unless excused by the court in advance. Parties represented by counsel are not required to appear at a CMC. Any request for a CMC or status conference must articulate the reasons for the necessity of the conference.

- **Status Conference:** Any party may request a status conference when a case requires.

- **Requirements:** Any request for a CMC or status conference must articulate the reasons for the necessity of the conference.

- **Scheduling:** If the court agrees that a CMC or status conference is required, the moving party may schedule the CMC or status conference through the online scheduling platform.

I. Setting Case for Trial

- **Procedure for Setting Trial:** If a probate matter needs to be set for trial, a notice for trial shall be e-filed and a copy shall be submitted to the Court by email at MolinaM@Circuit19.org. The matter will be scheduled for a case management conference once the Notice of Trial is received by the Court. All Civil trials are scheduled by the Case Management Plan and Trial Order.

- **Notice Period:** The case management order shall be your trial order.

- **Other Procedures for Setting Case for Trial:** Pre-Trial Compliance: The Court requires full compliance with the Case Management Plan and Order, which includes, without limitation, timely submission of a joint pre-trial statement. Your case will be subject to sanctions and/or removal from the trial docket if a joint pre-trial statement is not filed in compliance with the pre-trial order. Motions in limine and other motions concerning how the trial is to be conducted will not be entertained during trial or on the day of jury selection, unless the Court is satisfied that with due diligence, the matter could not have been heard pre-trial.

- **Settlement of Cases:** If your case settles prior to trial, please immediately email a copy of the Notice of Settlement to the Court at MolinaM@Circuit19.org.

- **Sanctions:** Failure to appear for trial or comply with procedures will be grounds for sanctions being imposed, including, but not limited to attorney's fees, costs, striking of pleadings, default or dismissal.

J. Forms

- Access: Divisional forms are available to the right of this webpage.
- Usage: Division forms must be used for all relevant filings.
- Other Forms Procedures: Checklists are required for both Opening and Closing Estates. The checklists are posted to the right of this webpage under forms.

K. Other Division Procedures

- **ADA Accommodations:** If you need an ADA accommodation, please visit https://www.circuit19.org/americans-with-disabilities-act-ada/ for more information.

- **Interpreter Requests:** If an interpreter is needed for a hearing or trial where a fundamental interest is at stake, please visit https://www.circuit19.org/court-interpreters/ for more information.

- **Other Division Procedures:**

- **Domestic Relations Self-Represented Litigants**: Please visit https://www.circuit19.org/family-division/ for additional information.

- **Probate:**

    - Submissions: All Probate questions and submissions shall be directed to the case manager at ProbateIRC@Circuit19.org, with the exception of hearing documents, those shall be submitted to the Court by email to MolinaM@Circuit19.org.

    - Attorneys must verify completion and correctness of the Checklists by personal signature. No signature stamps are allowed. Once the checklist is complete, the attorney's office shall submit via email only to ProbateIRC@circuit19.org:

        - Completed checklist
        - Proposed Order(s) in Word format; and
        - A description of the documents being provided, as well as the action you wish to be taken.

- **Guardianship/Incapacity Proceedings:**

    - You must submit the following in word format via e-mail to: MolinaM@Circuit19.org within 5 days of filing your petition:
        - Notice of Petition to Determine Incapacity with the Hearing date filled in, if possible (refer to and schedule using the online scheduling system);
    - Application to Determine Indigency Status (In order for the Court to determine who shall be appointed to represent the AIP, an Application to Determine Indigency Status MUST be submitted to the Clerk of Court at the time of filing;
    - Order Appointing Attorney/Elisor; and

- Order Appointing Examining Committee. If there is information on the proposed orders that can be filled in by your office, please do so before submitting to the Court, including case number and e-mail service addresses. Do not include Certificate of Service by the Clerk.

If a hearing date for the Petition to Determine Incapacity has not been set at the time of submitting the documents referenced above, the Court will select a date of his own choosing approximately 28 days out from the date the orders are entered.

If you have a pending Guardianship or Mental Health case that needs to be set for hearing and there is no time available on the online scheduling calendar, please email the Judicial Assistant at MolinaM@Circuit19.org with the details of your request, including a copy of the petition/motion and the total time needed for hearing.

- Examining Committee Fees: Pursuant to Administrative Order 2026-05 superseding 2017-10 in RE: Order for Compensation of Examining Committee, this office will only accept the Order for Compensation of Examining Committee available on www.circuit19.org. This Order must be sent within five (5) days after the hearing for incapacity is held.

  Payment of Examining Committee Fees where the Ward has been found indigent: These fees are preset and must be as follows:

  - Physicians: $500.00
  - Psychologists: $500.00
  - Lay People: $350.00

- **Motion to Dismiss and/or Motion for More Definite Statement:** The Court will initially consider all Motions to Dismiss filed pursuant to Rule 1.140(b) and Motions for More Definite Statement filed pursuant to Rule 1.140(e), without hearing. Motions to Dismiss must strictly comply with the requirements of the Rule in that the grounds on which they are based and the substantial matters of law intended to be argued shall be stated specifically and with particularity. Motions for More Definite Statement must strictly comply with the requirements of the Rule in that the motion must point out the defects complained of and the details desired. A copy of the motion and proposed order(s) shall be submitted to the Court by email at MolinaM@Circuit19.org.

- **Discovery Motions and Motions to Compel**: Motions to Compel, as well as all discovery motions must comply with the Florida Rules of Civil Procedure, including, but not limited to, a certification that the movant, in good faith, has conferred or attempted to confer with the person or party failing to make discovery in an effort to secure the information without court action. *See,* Fla.R.Civ.P. 1.380(a)(2).

  When a motion to compel discovery alleges a complete failure to respond or object to discovery, and the time for complying with the discovery request has lapsed and there has been no request for an extension of time, an ex parte order may be entered requiring

compliance with the original discovery demand. The movant shall submit a copy of the motion and proposed order(s) to the Court by email at MolinaM@Circuit19.org.

- **Motions for Protective Orders:** The filing of a Motion for Protective Order, without presenting it before the Court, is insufficient. The Court will make itself available for expedited hearings on said motions where the motion could *not* have been filed and heard in the due course of discovery.

- **Motions for Rehearing, Reconsideration, or New Trial:** Upon filing said motion the moving party shall submit a copy to the Court for review by email at MolinaM@Circuit19.org. The copy of the motion sent to the Judge shall be accompanied by a generic order in WORD granting/denying the motion, with at least five lines for additional provisions, a transmittal letter showing copies to all counsel and *Pro Se* parties. If the moving party fails to comply, any party may furnish a copy of the motion and the required documents to the Court. If the Court determines that a hearing is necessary, the movant will be advised to schedule and hearing and file appropriate notices. Please do not set a Motion for Rehearing or Motion for Reconsideration for hearing without first receiving permission from the Court.

- **Motions to Withdrawal or Substitution of Counsel:** You must follow the provisions of Fla.R.Jud.Ad. 2.505. You must obtain the client's consent in writing which shall be filed with the Court, or a hearing must be held after proper notice to the client.

- **Motions for Extension of Time:** When a motion for extension of time is filed, and there is no opposition for the extension, an order may be entered without a hearing, so long as the motion details the grounds for "good cause." The movant shall submit the proposed order in WORD format, and in a cover letter or email shall certify that that opposing counsel or unrepresented party has been contacted and agreed to the order or waived a hearing thereon.

L. Information Not Covered

- Original documents and monies are not to be sent to the Judge's office, and the Judge's office takes no responsibility for such items.

- Requirements for Court Reporters: All evidentiary matters (both trials and hearings) must be reported by a court reporter. Counsel for the Petitioner is responsible for having a court reporter present. If counsel for the Petitioner does not plan on asking to have the proceedings reported, then he/she MUST timely notify the opposing party so that they may obtain a reporter, should they wish to do so. Failure to do so may be grounds for cancellation of the trial and may be grounds for sanctions.

- If any procedures are not covered herein, counsel is free to contact the Court, in writing via e-mail at MolinaM@Circuit19.org. A status hearing can be set at which time the Court will attempt to answer any inquiries. The Court appreciates counsels' efforts to understand and comply with this Court's procedures.